

Sciences and the Law, 15, 503–523.

Selling, L. (1931). The pseudo-family. *American Journal of Sociology*, 37, 247–253.

Punishment Philosophies

The reasons why societies punish criminal offenders have been referred to by a number of terms, including philosophies of punishment, justifications for punishment, orientations of punishment, and goals of punishment. Regardless of which phrase is utilized, criminologists typically discuss four main punishment philosophies—retribution, deterrence, incapacitation, and rehabilitation—though scholars are increasingly recognizing other philosophies of punishment such as restorative justice. Some philosophies focus on the offense committed while others focus on the offender, but all address the basic question of why societies punish offenders.

Retribution is widely considered the oldest justification for why societies punish offenders. Associated with the idea of revenge, retribution is based largely on the idea of “an eye for an eye,” or *lex talionis*, referring to punishments that fit the crime or more specifically as payback in kind. The premise is that when individuals are wronged, they are entitled to commit an act of similar magnitude against the person who wronged them. Philosopher Immanuel Kant (1724–1804) emphasized retribution as a legitimate justification of punishment, determined only by the guilt of the offender. Kant went on further to write that the specific crime committed should determine the type and extent of punishment. Retribution is about wrongdoers being punished because they deserve it and for no other reason. There is no concern about changing the offender’s behavior or attitudes or convincing the offender to not reoffend in the future. Retribution assumes that offenders are morally blameworthy, and punishment is viewed as deserved because the individual chose to commit crime of their own volition. The philosophy of retribution emphasizes the idea of proportionality, that punishment should be proportionate to the harm caused by crime. However, the retributive philosophy also holds that overpunishing is morally unacceptable. In practice, this means that determining what punishment is proportionate to specific crimes can be quite difficult, particularly in an era where punishments do not simply inflict on offenders the same harm they inflicted on others. There is also a question regarding the role of intent, as many harms may occur even when a person did not intend for those harms to happen or otherwise lacks culpability for his or her action. Retribution has been highly criticized on this ground, as courts consider factors related to culpability such as mental illness and capacity and differential treatment of juveniles who are considered not fully culpable due to their age.

Retribution is evident in the philosophy of just deserts, and many use the terms interchangeably. The ideology behind retribution has motivated the tough on crime movement in American criminal justice, including, for example, the creation and use of sentencing guidelines and mandatory sentencing, which emphasize the seriousness of the offense as a major consideration for determining punishment. Retribution also continues to be utilized as a major ideology supporting the continued use of the death penalty in the United States, with advocates of the death penalty arguing that, particularly in cases of homicide, that the death penalty is both deserved and proportionate.

During the Age of Enlightenment, philosophers embraced rationalism and the idea that human beings are essentially good. Philosophers such as Voltaire (1694–1778), the Baron de Montesquieu (1689–1755), and Jeremy Bentham (1748–1832) began to question and challenge the brutal punishments common during this time period. A major philosophy of punishment, deterrence, emerged during the Age of Enlightenment. Deterrence was discussed at length by Cesare Beccaria in his *On Crimes and Punishments*, originally published in 1764. Beccaria was also concerned about the brutality of punishments and the inconsistencies he saw occurring within the legal system. To address these concerns, he anonymously published a treatise in which he outlined how criminal justice policies could act to prevent people from committing crimes. Beccaria’s ideas were based on Thomas Hobbes’s concept of the social contract and emphasized how his reforms would make criminal justice more rational. Beccaria’s ideas are considered the foundation of deterrence theories, and he is often cited as the Father of Classical Criminology. Among his many reform ideas, Beccaria proposed that the purpose of punishment is to deter crime, in contrast to retribution, and that punishments should be proportionate to the crime committed in order to act as a deterrent. In order to deter people from crime, punishment for crimes needs to be known. When Beccaria was writing, punishment for many crimes was not widely known, and this was made even more difficult as judges varied widely in what punishments they gave. Additionally, in order to deter people from crime, Beccaria argued that punishments need to be swift, so that people would connect the punishment with the crime committed.

Punishment should also be certain, so that people would recognize that they are likely to be punished if they commit crime. And finally, punishment must be severe. Beccaria's point about severity is often lost, however, because he also emphasized proportionality between crime and punishment and argued that excessive punishment is both unjust and would increase crime rather than deter people from crime.

Deterrence theories today often focus on either specific or general deterrence. Specific deterrence is a philosophy which argues that people who are punished are likely to not commit additional crime in the future because they disliked the punishment they received the first time. Specific deterrence is about reducing reoffending rather than initial offending. The philosophy of general deterrence is that the punishment of some will convince other, nonpunished people that crime is not worth it. General deterrence can thus reduce crime by preventing noncriminals from ever becoming criminals because they fear punishment. Stafford and Warr (1993) have also extended the study of deterrence to include the idea of punishment avoidance, which encompasses both one's direct experience with avoiding punishment as well as the knowledge of punishment avoidance by others.

In practice, particularly in the United States, the use of the deterrence philosophy most often focuses on increasing the severity of punishment. Increasing sentence length has been a primary way legislators have responded to public calls to "get tough on crime," especially for drug crimes and crimes against children. A major impact of increasing sentence length in the United States has been dramatic increases in the prison population since the 1970s. Many scholars have argued that increasing severity of punishment alone, without addressing certainty and swiftness, probably has limited impact on crime rates and may result in disproportionate sentences.

Rehabilitation is a punishment philosophy based on taking into account the needs and characteristics of the offender rather than focusing solely on the offense committed. Rehabilitation focuses on changing an offender's character, attitudes, and behaviors to reduce their criminality. The premise is that criminals can change into noncriminals if they receive appropriate treatment. Rehabilitation has been a major pillar of correctional ideology, though actual adherence to rehabilitative ideals, particularly in correctional institutions, has been questioned as lacking. The indeterminate sentencing model was premised on the idea of rehabilitation in that offenders would serve a minimum amount of time after which they could demonstrate that they had been rehabilitated and then released. The ideology of rehabilitation itself has been criticized as soft on crime and coddling of offenders. Many rehabilitative programs exist throughout the correctional system. In 1974, the famous Martinson Report claimed that "nothing works" in terms of rehabilitation. This led to some states changing their sentencing structures to a determinate scheme in which offenders received flat time. Rigorous research has illustrated that rehabilitative programs can be effective in reducing criminal propensities. Within the rehabilitative framework, scholars have identified the importance of measuring the risks and needs of offenders and the critical need to match offenders to rehabilitative programs based on their learning style and other characteristics. Two major points to emphasize within rehabilitation are that not every program will work for every offender and that no program will be 100 percent effective.

A fourth major philosophy of punishment is incapacitation, confining or restraining individuals so they are unable to commit crime. The use of correctional facilities to physically prevent inmates from committing crime—at least in regular society—is premised on the idea of incapacitation and is the most common example of incapacitation, though other forms of punishment like shock incarceration and community sanctions that limit movement are also forms of incapacitation. Incapacitation through incarceration could be used as a way to reduce crime in society. Although correctional facilities have their origins in the penitentiaries of the early 1800s, incapacitation was not the official philosophy embraced during that time. As tough on crime proposals gained prominence beginning in the 1970s, sentencing offenders to incarceration with an explicit purpose of incapacitation emerged.

A specific form of incapacitation is selective incapacitation, when repeat offenders are sentenced to long prison terms. This idea is exemplified through three-strikes laws and habitual offender laws in which repeat offenders are given longer prison terms based largely on the fact that they are recidivists. The idea behind selective incapacitation is that offenders who are likely to continue committing crime are unable to if they are incapacitated via incarceration. Selective incapacitation has come under some criticism because it relies on accurately predicting which offenders are likely to continue offending. If offenders are incapacitated and they would not have continued committing crime anyway, then correctional resources have been unnecessarily expended. However, the opposite is also true; if offenders are viewed as unlikely to commit future crime and are not incapacitated, but then commit more crime, the public has not been protected from that crime. This issue of false positives and false negatives makes measuring the effects of selective incapacitation difficult to determine as well as bringing up ethical issues of incarcerating offenders for crimes they might potentially commit.

A newer philosophy of punishment that has emerged within criminal justice is the idea of restorative justice, also referred to as balanced and restorative justice (BARJ). Restorative justice aims to restore victims, offenders, and communities to a precrime state. This philosophy focuses on how the offender can be enabled to make amends to the victim of his or her crime and take responsibility. The victims' rights movement in recent decades is integral to restorative justice in that this process gives a prominent place to victims, who are largely ignored in the traditional legal system where the state brings charges against an alleged offender. However, this philosophy should not be considered as focusing solely on the victim. The needs of the offender are important to consider too, as the idea is to bring all parties involved back to a precrime state. Offenders need to be supported so that they have the ability and capacity to accept responsibility, make amends, and then be accepted as full members of the community. The community is assumed to play an integral role in crime control and thus must play a large role in working with victims and offenders and carrying out the resolution of issue and restoring the community.

Melissa J. Stacer

See also: [Beccaria, Cesare](#); [Enlightenment and Punishment](#); [Legitimate Penological Interests](#); [Restorative Justice](#)

Further Reading

- Beccaria, C. (1963 [1764]). *On crimes and punishments* (Trans., H. Paolucci). Indianapolis: Bobbs-Merrill.
- Bernard, T. J., Snipes, J. B., & Gerould, A. L. (2010). *Vold's theoretical criminology* (6th ed.). New York: Oxford University Press.
- Collins, P. A., Iannacchione, B., Hudson, M., Stohr, M. K., & Hemmens, C. (2013). A comparison of jail inmates and staff correctional goal orientations: Results from across the line. *Journal of Crime and Justice*, 36(1), 100–115.
- Cottingham, J. (1979). Varieties of retribution. *Philosophical Quarterly*, 29, 238–246.
- Gerber, M. M., & Jackson, J. (2013). Retribution as revenge and retribution as just deserts. *Social Justice Research*, 26(1), 61–80.
- Martinson, R. (1974). What works? Questions and answers about prison reform. *The Public Interest*, 35, 22–54.
- Spelman, W. (1994). *Criminal incapacitation*. New York: Plenum.
- Stafford, M. C., & Warr, M. (1993). A reconceptualization of general and specific deterrence. *Journal of Research in Crime and Delinquency*, 30(2), 123–128, 133–135.
- Zimring, F., & Hawkins, G. (1995). *Incapacitation: Penal confinement and the restraint of crime*. New York: Oxford University Press.